

Ghiglia: “Global crash? We must resolve our dependence on big tech”

In January 2024, a data breach exposed 26 billion personal data records, and on July 19, the Windows crash paralyzed transportation systems and access to data. These incidents underscore the urgency of establishing public digital sovereignty to protect citizens and ensure the security of our digital infrastructures.

Intervention by Agostino Ghiglia, member of the Italian Data Protection Authority (Garante per la protezione dei dati personali) (AgendaDigitale, July 23, 2024)

Recent events, such as the global Windows crash and the unprecedented data breach known as Moab (Mother of All Breaches), which brought digital systems worldwide to their knees, highlight the urgent need for a more resilient and sovereign approach to technology and digital infrastructures.

In the face of increasingly sophisticated vulnerabilities and attacks that know no geographical boundaries, the European regulatory response is moving towards greater integrity and security of data, while the importance of digital civic education is re-emerging as a fundamental skill to prepare citizens to navigate and protect themselves in the intricate digital universe.

The lessons learned from recent cyber disasters outline a future where privacy protection and digital sovereignty will be increasingly central in international dialogues on internet governance and personal data management.

Moab and Bsod: the data crisis and global paralysis

The unprecedented data breach known as Moab (Mother of All Breaches) occurred in January. During this breach, as many as 26 billion data records, primarily personal, were exposed to the public. In recent days, we have had to endure another acronym: Bsod (Blue Screen of Death), apparently a faulty software update that resulted in the “paralysis,” more physical than digital, of half the planet. The power of acronyms!

In an era of speed where we all yearn to do more and do it faster, these sets of terms seem to make everything softer and less concerning but, at the same time, also more arcane, enigmatic, and less comprehensible. It is not a simple SPQR! Technology and its limits, or flaws, or the consequences of its troubles are cloaked in allegorical and magically imaginative phrases (but also substantially distorting).

The translation is much more bluntly unsettling: in January 2024, 26 billion profileable and categorizable data records were put on the market while on July 19, the “blue screen of death” (literally) caused the “death” of thousands of flights and communications, rendering personal data (or somehow related) of many users inaccessible and unusable. But why did the screens die and entire systems had to revert to pen and paper? Apparently due to a bug in a security software update (sic!) from a company that works for one of the largest Big Tech firms.

The importance of digital sovereignty in an era of technological monopoly

In my humble opinion, consequently, one of the main themes for reflection is that the proprietary software that monopolizes the Western world is all privately owned. This does not mean, of course, that if they were publicly owned there would be fewer incidents or that they would work better, but that in the event of dysfunctions, breaches, violations, and incidents, it would be public systems, derived from and emanating from democratic processes, managing not only the free flow of data but also potential crises and malicious attacks.

Today, 67% of Cloud services, the mythical and often “cloudy” data vaults, are in the hands of just three private companies which possess investment capabilities (and a unified intent, profit) unimaginable for most nations.

Public digital sovereignty, both European and national, if still achievable, should be an absolute priority for states, even though achieving it requires not just “proprietary” Clouds but also extremely costly proprietary software—costing several billion—to create ecosystems where citizens' data remain with the citizens.

Would that be fair? Would it be compatible with the principles of the free market? It is not for me to answer such questions, but stringent control systems are needed even over private activities to ensure that our digital twins, our Digital Twins, that is, our humanity transferred online in the digital age (both in normal times and during breaches), are not the exclusive domain of a small group of private entities, some of which control, influence, and dominate the development of Artificial Intelligence as well.

The vulnerabilities of digital systems and recent crises

The incidents mentioned at the beginning also highlight the vulnerability of systems and control chains for the protection of our data as well as the objective fragility of global digital infrastructures. The pursuit of public digital sovereignty, which has the public interest in its DNA, is therefore crucial to ensure that personal data and digital identities of citizens are protected and managed securely.

The European regulatory response to data management

States must invest in their digital infrastructures, enhance the Data Protection Regulation (extending it to data that is not only personal) and the relevant Authorities, and synthesize it in a future-oriented manner with the recent European regulations that aim to govern...

****The Digital Era including the DSA, the DMA, the AI ACT and all the others that in recent years have (perhaps a bit too much) hypertrophied European legislative production.****

****Digital Civic Education and Training: Pillars for Security****

It is necessary, once again, to promote digital civic education as a subject of study from the very first cycle of schooling and digital training (not so much technical as cultural) among citizens. Only in this way can we hope to build a secure digital society, where personal data is protected and remains in the ownership and control of citizens, and where incidents like MOAB and BSOD become rarities rather than the norm.

We would like not to have to tell our children and grandchildren a story that begins with: "And one bad day everything froze..."

****Future Implications of Personal Data Management****

Indeed, one does not need to be a digital Cassandra to understand that the hyperconnected world in the hands of a few could suddenly transform, by accident or will, into a hyperblocked world. I believe that what has happened in recent days imposes serious reflections on how our physical and digital existence is managed today – and even more so tomorrow with AI. MOAB and BSOD are therefore not just a mere technological incident but a warning bell that reminds us of our extreme dependence on a few gigantic companies.

****Conclusions****

In conclusion, the chronicle of this announced death manifested in the form of a blue screen and the scythe of the enormous inconveniences it has caused must serve as a warning and teach us something, without allowing us to drown and forget in the rampant infodemic: the digital era in which we are increasingly immersing ourselves requires a strong and well-regulated public digital sovereignty, capable of guaranteeing the security and privacy of all citizens. Only in this way can we navigate confidently in the uncharted sea of the new era with reasonable certainty that our data, and with it our identities, our humanity, our intimacy, are adequately protected.